

		modified, or be lifted. The parties shall file a CMC statement addressing these matters 10 days prior to the hearing. Defendant shall give notice.
115	Gonzalez vs. Red Digital Cinema, LLC 2021-01236367	Motion for Final Approval of Class/PAGA Settlement Plaintiff Briseida Gonzalez’s Motion for Final Approval of Class Action and PAGA Settlement, Attorneys’ Fees, Litigation Expenses, and Class Representative Enhancement Payment is CONTINUED to October 15, 2026 at 2:00 p.m. in Department CX102 in order to give Class Counsel an opportunity to address the issues identified below. [This is a putative wage-and-hour class action and PAGA matter. On 12/14/2021, Plaintiff Briseida Gonzalez, individually and on behalf of other members of the general public similarly situated, filed a class action complaint against Defendant Red Digital Cinema, LLC. (ROA #2.) The operative complaint is the first amended complaint (FAC), filed on 4/4/2025 per the parties’ stipulation. (ROA #97.) The FAC alleges various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (<i>Id.</i>) Defendant answered the FAC on 4/14/2025. On 4/30/2025, Plaintiff filed the Motion for Preliminary Approval of the Class Action and PAGA Settlement. On 2/26/2026, at the second hearing on the matter, the Court conditionally granted the motion. (ROA #132.) On 3/6/2026, the Court entered the order granting preliminary approval. (ROA #141.) Plaintiff has submitted both a Joint Stipulation of Class Action and PAGA Settlement and an Amendment No. 1 to Joint stipulation of Class Action and PAGA Settlement (collectively, “Settlement Agreement”), along with a Class Notice (including amendments) for the Court’s review. The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiff’s class and PAGA claims for the non-reversionary gross settlement amount (GSA) of \$755,000. The GSA includes \$50,000 allocated for PAGA penalties. On 7/15/2026, Plaintiff filed the instant Motion for Final Approval of Class Action and PAGA Settlement. The motion seeks approval of the Joint Stipulation of Class Action and PAGA Settlement and Amendment No. 1 to Joint stipulation of Class Action and PAGA Settlement (collectively,

“Settlement Agreement”), which provides for the settlement of Plaintiff’s class and PAGA claims for the non-reversionary gross settlement amount (“GSA”) of \$834,449.61 after the escalator clause was triggered. The GSA includes \$50,000.00 allocated for PAGA penalties.

The Court concludes that an attorneys’ fee award totaling \$250,334.88 or 30% of the GSA, constituting a 1.11 multiplier against the lodestar amount, is fair, adequate, and reasonable for a class and settlement of this size, including considering the action’s contingent nature and the results achieved.

The Court also concludes that litigation costs should not include overhead or nonrecoverable items such as postage. Therefore, the Court deducts from the requested amount \$17.20 for postage incurred on 7/16/2021 and 2/8/2023 and awards \$12,667.05 in requested costs.

The Court further concludes that a Class Representative Enhancement Payment of \$5,000 is fair, adequate, and reasonable for a class and settlement of this size, considering that there was nothing extraordinary about Plaintiff’s contribution to the case.

Additionally, the Court has identified the following issues with the moving papers, which must be addressed by Class Counsel before final approval can be granted:

1. The Court notes that Plaintiff’s motion for preliminary approval estimated that there would be 969 class members and 277 aggrieved employees. (See ROA #106, p. 10; ROA #127, p. 3.) However, according to the administrator’s declaration submitted in support of the instant motion for final approval, there are only 589 class members and 165 aggrieved employees. (ROA #154, ¶ 6.) These numbers reflect a significant decrease from the previous estimates, but Plaintiff’s moving papers have not provided an explanation as to why.
2. The administrator reports that the deadline for class members to respond to the class notice was 7/22/2026. However, Plaintiff submitted a declaration from the administrator reporting on class notice results that was dated 7/14/2026. Therefore, final class notice results have not been submitted to the Court.
3. Class Counsel must attest as to whether there is a fee-splitting agreement with any other counsel, or confirm there is none.

Class Counsel must also provide a revised and combined [Proposed] Order of Final Approval and Judgment with the following revisions:

1. The specific awards and disbursements should be revised to reflect the amounts set forth in this order.
2. The proposed order and judgment should specify the number of class members and aggrieved employees.
3. The proposed order and judgment must state that one (1) class members objected and how the objection was resolved.

4. The proposed order and judgment should also state that no class members submitted workweek disputes.
5. If any class members opt out, object, or submit workweek disputes between 7/14/2026 when the administrator signed the submitted declaration at ROA #154 and 7/22/2026 when the deadline for class members to respond expires, the proposed order must be amended to reflect any new submissions.
6. The proposed order and judgment should state that the settlement administrator will post a copy of the order and judgment on the website for 180 days.
7. Counsel should not leave blank but should instead propose a realistic Final Accounting hearing date, taking into account the deadlines associated with funding the settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the Settlement Agreement. The Court usually sets these hearings 9-10 months after final approval if the check-cashing deadline is 180 days. The parties must report to the Court the total amount that was actually paid to class members and all others in accordance with the Settlement Agreement. All supporting papers must also be filed at least sixteen (16) court days before the Final Accounting hearing date.
8. The proposed order and judgment should state that the settlement administrator's final report should be filed at least 16 court days before the Final Accounting hearing.

The Court further refers Class Counsel to the "Guidelines for Approval of Class Action Settlements & PAGA Settlements" posted on the Court's website for Department CX102, available at <https://voypubapps.occourts.org/complex-civil-calendar>.

Class Counsel must file supplemental papers addressing the Court's concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. If supplemental papers addressing all of the Court's concerns cannot be filed by the pre-hearing deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions.

Plaintiff is ordered to give notice of this ruling, including to the LWDA, within five (5) court days, and file proof of service.